

BC478744 BC478744

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: BC478744 Hearing Date: July 9, 2026 Dept: 732

Ray W. Exley v. Barry Harlan, et al.

Thursday,

July 9, 2026

CASE NUMBER: BC478744

OPPOSED

Cross-Defendant

Kaplan Kenegos and Kadin's Motion to Dismiss the First Amended Cross-Complaint of Evan B. Schenkel, APC

Facts:

This is a legal malpractice action. The Second Amended Complaint (SAC) alleges as follows. Plaintiff Ray W. Exley (Plaintiff) employed Defendant Evan E (Schenkel) to represent him in a marital dissolution action. (SAC ¶ 8.) Schenkel unreasonably overbilled Plaintiff and was negligent in his representation, failing to allege appropriate claims or conduct adequate discovery. (SAC ¶¶ 10–25.)

Plaintiff also employed Defendants Barry Harlan (Harlan) and the firm Lewitt, Hackman, Shapiro, Marshall, & Harlan (LHSMH) to represent him in the dissolution action and a concurrent civil action against Plaintiff's

ex-wife. (SAC ¶ 26.) Harlan and LHSMH negligently represented Plaintiff in the civil and dissolution action by failing to allege appropriate claims and failing to conduct adequate discovery. (SAC ¶¶ 27–28.)

Schenkel's First Amended Cross-Complaint (FAXC) alleges that Plaintiff has failed to pay amounts owed for services rendered. (FAXC at p. 6.) Plaintiff has converted funds upon which Schenkel had a valid attorney lien. (FAXC at pp. 15–16.) Although Plaintiff obtained a court order allowing for the receipt of such funds, such funds, obtained with the wrongful assistance of his current counsel, Kaplan, Kenegos & Kadin (Kaplan), such order was obtained by fraud and was a deliberate interference with Schenkel's contract rights. (FAXC at pp. 16–19.)

LHSMH's Cross-Complaint (XC) alleges that Plaintiff has breached a contract to pay fees owed for services rendered. (XC at p. 2.)

Procedural

History: Plaintiff filed the initial Complaint on February 10, 2012. He filed an FAC on October 3, 2012, and filed the SAC on September 5, 2013, alleging six causes of action:

1.
Breach of Fiduciary Duty (Schenkel)
2.
Legal Malpractice (Schenkel)
3.
Legal Malpractice (Harlan, LHSMH)
4.
Breach of Written Contract (LHSMH)
5.
Breach of Oral Contract (Harlan, LHSMH)
6.
Declaratory Relief (Schenkel)

LHSMH filed a Cross-Complaint on August 9, 2012, alleging four causes of action:

1.
Breach of Contract
2.
Open Book Account
3.
Account Stated
4.
Common Counts

Schenkel filed a Cross-Complaint on November 8, 2013, alleging 11 causes of action:

1.
Breach of Contract
2.
Open Book Account
3.
Account Stated
4.
Services and Materials
5.
Declaratory Relief
6.
Enforcement of Attorney Lien
7.
Money Had and Received
- 8.

Conversion

9.

Constructive Trust

10.

Declaratory Relief

11.

Intentional Interference with

Contract

On July 1, 2014, the court denied Schenkel's anti-SLAPP motion, overruled Schenkel's demurrer to the SAC, and sustained Exley and sustained Kaplan and Exley's demurrer to Schenkel's cross-complaint as to the fifth through tenth causes of action, with leave to amend.

Schenkel filed the First Amended Cross-Complaint on February 17, 2015, alleging the same causes of action as the original cross-complaint.

On March 26, 2015, this case was stayed pending the appeal of the underlying action and trial in a related federal court action.

On March 29, 2017, Plaintiff dismissed claims as to Harlan.

On August 11, 2021, this court denied Juliana M. Loza Exley's motion to be substituted as Plaintiff's successor in interest, without prejudice.

On February 16, 2023, at an OSC re: dismissal for failure to obtain administrator of estate, this court ordered Plaintiff's complaint dismissed.

On July 27, 2023, this court denied Loza-Exley's second motion to be a substituted as Plaintiff's successor in interest, reasoning that she had not secured appointment of an estate administrator and had not explained the delay. On the same date, the court entered Plaintiff's default.

On September 5, 2023, Loza-Exley filed a notice of

bankruptcy stay.

On May 30, 2024, the bankruptcy stay was lifted.

Michael Millward, administrator of Exley's estate, filed the present motion to set aside default on September 10, 2024. Schenkel filed an opposition on September 30, 2024. Millward filed a reply on October 4, 2024.

This court on October 11, 2024, continued hearing on the motion to vacate default to permit the filing of a motion to substitute successor in interest for Exley.

On April 6, 2026, this court granted in part Keenan Brown's motion to be substituted as plaintiff in place of Decedent Exley, and continued the hearing to permit Brown to support his application to be substituted as cross-defendant.

Also on April 6, 2026, this court overruled Cross-Defendant Kaplan's demurrer to the FAXC.

Kaplan filed the present motion to dismiss Schenkel's FAXC on May 22, 2026.

Schenkel filed an opposition on June 25, 2026.

Kaplan filed a reply on July 1, 2026.

Analysis:

I. MOTION TO DISMISS

"An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc. § 583.310.) If trial is not held within the time allowed, an action may be dismissed by the court on its own motion or on motion of the defendant. (Code Civ. Proc. § 583.360, subd. (a).) "In computing the time within which an action must be brought to trial pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

(a) The jurisdiction of the court to try the action was suspended.

(b) Prosecution or trial of the action was stayed or enjoined.

(c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.

(Code Civ. Proc. § 583.040, subd. (a)-(c).)

Cross-Defendant Kaplan

Kenegos and Kadin ("Kaplan") moves to dismiss the First Amended Cross-Complaint of Defendant and Cross-Complainant Evan B. Schenkel, APC ("Schenkel") on the grounds that the original cross-complaint was filed on July 24, 2014, and has not been brought to trial within the five years contemplated by Code of Civil Procedure § 583.310.

Kaplan acknowledges that the five-year computation necessarily excludes all periods in which the action was stayed or enjoined, and notes this matter was stayed by stipulation of the parties for a substantial duration to permit the resolution of concurrent family law proceedings, the last such stipulation it identifies being filed on June 5, 2018 and continuing the present case through December 4, 2018. (Motion at pp. 6–8.) Although a notice of bankruptcy stay was filed on September 5, 2023, which stay was lifted on May 30, 2024, Kaplan argues that this stay was applicable only to claims against the bankruptcy debtor Juliana Loza, not to claims against Kaplan. (Motion at p. 9.) Kaplan computes that since Schenkel's cross-complaint was filed, there were only 1,537 days in which the matter was stayed, meaning that the last day to bring this case to trial would have been July 22, 2023, long before the present motion to dismiss was filed on May 22, 2026. (Motion at pp. 7–8.)

However, Schenkel in opposition argues that no dismissal is warranted because, in addition to the stays identified by Kaplan, trial in this matter has been impossible and impracticable since the death of Plaintiff and Cross-Defendant Ray W. Exley, on June 1, 2020, for whom no administrator of his estate was appointed until May 14, 2025, with the appointment of Keenan Brown. (Opposition at p. 3.) Hearing on Brown's

substitution into this matter is set for July 22, 2026.

Schenkel's argument that its Cross-Complaint could not be brought to trial absent the appointment of an administrator for Exley's estate is persuasive. It is true that "[a] pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc. § 377.21.) However, "judgment cannot be rendered for or against a decedent, nor for or against a personal representative of a decedent's estate until the representative has been made a party by substitution." (Sacks v. FSR Brokerage, Inc. (1992) 7 Cal.App.4th 950, 957.) Here, no administrator of Exley's estate was appointed until May 14, 2025. Thus Schenkel could not have brought his claims against Exley to trial until May 14, 2025. The period from June 1, 2020, to May 14, 2025, adds an additional 1,808 days to Kaplan's five-year computation, which in addition to the 1,537 days already computed, yields a time in which trial was impracticable of 3,345 days, meaning that the trial deadline under Code of Civil Procedure § 583.040 is five years from November 8, 2013 (November 8, 2018), plus 180 days under COVID Emergency Rule 10 (May 7, 2019), plus 3,308 days while this matter was stayed, or in which trial was impracticable due to the death of Exley, which yields a deadline of November 27, 2028.

Kaplan argues that Schenkel cannot complain of the failure to bring this matter to trial after the death of Exley, because Schenkel opposed the motions of Juliana Loza to substitute herself as successor in interest or special administrator in this action, which the court denied on August 11, 2021 and July 27, 2023. (Opposition at pp. 4–5.) But this argument is answered by the fact that the court found the oppositions of Schenkel and co-Defendant Lewitt, Hackman, Shapiro, Marshall, & Harlan meritorious, and Loza's petitions to be defective. The time since those decisions is thus not properly computed against Schenkel.

Additionally, trial on Schenkel's cross-claims against Kaplan could not have proceeded without Exley or his successor or administrator of his estate, as Exley was a necessary party to Schenkel's attorney's lien claims. "n attorney's lien is only enforceable after the attorney adjudicates the validity and amount of the lien," and because "enforcement of an attorney's lien claim is a matter of contract between the attorney and client, . . . it must be resolved as between those contracting parties." (Jacobs v. Papez (2026) 119 Cal.App.5th 123, 128, 130.) Schenkel's claims against Kaplan rest upon an attorney's lien that cannot be enforced absent determination of its scope and validity against the party whose contract

created the lien. In Exley's absence, or the absence of his successor or administrator, relief thus could not be accorded among the parties. (Code Civ. Proc. § 389, subd. (a).) Trial in this matter was not practicable until substitution in of the Decedent Exley's successor or administrator.

Accordingly, the motion to dismiss
is DENIED.

Superior Court of
California

County of Los Angeles

Department 732

RAY W. EXLEY, M.D.,

Plaintiff,

v.

BARRY

HARLAN, et al.,

Defendants.

Case No.: BC478744

Hearing Date: July 9, 2026

[TENTATIVE] RULING RE:

Cross-Defendant Kaplan Kenegos and Kadin's Motion
to Dismiss the First Amended Cross-Complaint of Evan B. Schenkel, APC.

Cross-Defendant Kaplan Kenegos and Kadin's Motion to Dismiss the First
Amended Cross-Complaint of Evan B. Schenkel, APC is DENIED.

Defendants to provide notice.

Dated: July 9, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court